

24STCV17721 24STCV17721

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Case Number: 24STCV17721 Hearing Date: July 14, 2026 Dept: 732

Guadalupe Rios v. US Motor Works, LLC, et al.

Tuesday, July 14, 2026

CASE NUMBER: 24STCV17721

OPPOSED

Defendant US Motor Works LLC's Motion to compel Further Responses to
Special Interrogatories from Plaintiff Guadalupe Rios

Facts: This is an action for employment discrimination and harassment. The Complaint alleges as follows. Plaintiff Guadalupe Rios ("Plaintiff") worked for Defendant US Motor Works, LLC ("Defendant") (Complaint ¶ 18.) Plaintiff suffered an injury that imposed disabling work restrictions on her lifting capacity. (Complaint ¶ 20.) Defendant ignored these restrictions and assigned Plaintiff tasks incompatible therewith. (Complaint ¶¶ 23–26.) Plaintiff's supervisor subjected her to harassment and sexual advances, and the requirement that Plaintiff perform strenuous work incompatible with her restrictions was retaliation for her refusal of these advances. (Complaint ¶¶ 23–26.) Plaintiff was subjected to harassment by a female coworker which culminated in Plaintiff being punched in the face. (Complaint ¶¶ 29–30.) Defendant did not take corrective action in response to Plaintiff's complaints about harassment. (Complaint ¶ 33.) The same coworker filed for a restraining order against Plaintiff, but the petition was denied.

(Complaint ¶ 33.) Defendant instead blamed Plaintiff for the misconduct of others. (Complaint ¶ 34.) Plaintiff was terminated after reporting that another employee had made death threats against her. (Complaint ¶¶ 35–36.)

Procedural History:

Plaintiff filed the Complaint on July 17, 2024, alleging ten causes of action:

1. FEHA Discrimination
2. FEHA Harassment
3. FEHA Retaliation
4. Failure to Prevent FEHA Violations
5. Failure to Accommodate
6. Interactive Process Violation
7. Lab. Code § 1102.5 Retaliation
8. Wrongful Termination
9. Negligent Hiring/Retention/Supervision
10. Failure to Permit Inspection of Records

On January 29, 2026, this court granted in part Plaintiff's motion to compel further responses from Defendant US Motor Works LLC.

Defendant filed the present motion to compel further on May 21, 2026.

Plaintiff filed an opposition on June 30, 2026.

Analysis:

I.

MOTIONS

TO COMPEL FURTHER

“Any party may obtain discovery . . . by propounding to any other party to the action written interrogatories to be answered under oath.” (Code Civ. Proc., § 2030.010(a).) If a propounding party is not satisfied with the response served by a responding party, the former may move the court to compel further interrogatory responses. (Code Civ. Proc., § 2030.300; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403.) The propounding party must demonstrate that the responses were incomplete, inadequate or evasive, or that the responding party asserted objections that are either without merit or too general. (Code Civ. Proc., § 2030.300(a)(1)–(3); *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 403.)

Defendant

US Motor Works, LLC (“Defendant”) moves to compel further responses to Special Interrogatories No. 39, 40, 45, 48, and 49, from Plaintiff Guadalupe Rios (“Plaintiff”). Interrogatories No. 39, 40, and 45 ask Plaintiff whether she contends particular named individuals — Gema Garcia, Cecilia Sosa, and Griselda Farrias — have relevant knowledge concerning the allegations of the complaint, and if so, to state the basis for Plaintiff’s belief that they have knowledge. (Separate Statement at pp. 2–6.) Plaintiff responded with objections, followed by the statement “Unknown.” (*Ibid.*) Interrogatories No. 48 and 49 ask Plaintiff to identify any law enforcement agency to which she made reports about one Cameron Brandt or his relatives. (Separate Statement at pp. 6–8.) Plaintiff responded with objections based on privacy and relevance. (*Ibid.*)

Plaintiff

in opposition argues that Defendant failed to adequately meet and confer before filing the present motion. (Opposition at p. 3.) Plaintiff served responses on April 7, 2026, and Defendant served a meet-and-confer letter substantially setting forth the position it presents in the present motion on April 20, 2026. (Mullis Decl. ¶¶ 6–7, Exh. E.) The letter sought supplemental responses, an answer to its arguments, and offered further efforts to meet and confer, as

well as extensions, if requested. (Mullis Decl. Exh. E.) Plaintiff's counsel did not respond until Defendant's counsel followed up on May 10, 2026, stating that she would review the letter and get back to Defendant. (Mullis Decl. Exh. F.) Defendant's counsel followed up one last time on May 19, 2026, noting that the motion to compel deadline was May 21, 2026, and offering an extension of time to respond. (Mullis Decl. Exh. G.) But no response was given, and this motion was filed on May 21, 2026. (Mullis Decl. ¶ 10.) Thus, while the conference that preceded the present motion was less than ideal, the fault for this lack of conference lies substantially with Plaintiff's counsel, who may not persuasively oppose the motion on the grounds that they failed to accept the multiple offers to confer made by Defendant.

Plaintiff

in opposition argues that Interrogatories No. 39, 40, and 45 ask Plaintiff to speculate concerning the knowledge that other people have about her allegations. (Opposition at p. 4.) This is not a compelling objection. Defendant notes that Plaintiff testified at deposition that the named individuals knew of certain pertinent matters — such as her complaints of harassment, or of pain and work restrictions — because she spoke to them about these matters. (Mullis Decl. Exh. H.) Plaintiff may now be called upon to provide specific, verified answers as to what was discussed and when. Plaintiff's objection that the interrogatories ask for the knowledge of other witnesses concerning other matters involved in the Complaint is of little moment (Opposition at pp. 4–5), as what Plaintiff discussed with them concerning the subject matter of this litigation is the legitimate subject of discovery. Plaintiff need not speculate concerning their future testimony to provide information concerning her communications or correspondence with these individuals, which are facts within her personal knowledge.

Plaintiff

also objects to Interrogatories No. 48 and 49, as they probe into Plaintiff's private affairs. (Opposition at pp. 6–7.) But this objection is not persuasive in regard to the discovery at issue. These interrogatories do not seek detailed information concerning Plaintiff's private affairs, but the identity of any law enforcement agency to which Plaintiff made any report concerning Cameron Brandt or his relatives. Brandt was evidently a coworker of Plaintiff during her employment with Defendant, and she testified that she complained to a law enforcement agency following their breakup in 2021, regarding his or his relatives threats or publication of inappropriate photos. (Mullis Decl. Exh. H at pp. 259, 260–262.)

It is

true that a free-ranging inquiry into this subject matter poses a risk of substantial intrusion into Plaintiff's private affairs, including her private sexual relationships, and, potentially, the private photographs themselves. (See *Hooser v. Superior Court* (2000) 84 Cal.App.4th 997, 1004 [right to privacy protects, among other things, the privacy of one's "sexual relationships"].)

But it is also true that Plaintiff alleges emotional distress suffered as a result of alleged harassment and discrimination, and has accordingly tendered in some measure the issue of what caused her alleged distress, and whether concurrent or preexisting stressors caused the distress she alleges. (Complaint ¶¶ 41, 43; see *Vinson v.*

Superior Court (1987) 43 Cal.3d 833, 842.) More detailed discovery into this issue may require Defendant to "demonstrate there is a nexus" between the specific emotional damages alleged and the relationship or incident in question. (*Tylo v. Superior Court* (1997) 55 Cal.App.4th 1379, 1388.) But presently, the interrogatories at issue here are not so detailed or intrusive. They ask Plaintiff to state the agency she reported to, which report's existence she already testified to at deposition. (Mullis Decl. Exh. H.) On balance, the good cause for the interrogatory outweighs the relatively slight intrusion upon privacy contemplated by these interrogatories. (See *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 [describing balancing test] for privacy objections in discovery.)

Accordingly, the motion to compel further responses is GRANTED. Further responses shall be served within 20 days of this order.

1.

Sanctions

Statute provides that the court shall impose sanctions upon a party who unsuccessfully makes or opposes a motion to compel further response to interrogatories, requests for production of documents, or requests for admission, absent substantial justification otherwise. (Code Civ. Proc. §§ 2030.300, subd. (d); 2031.310, subd. (h); 2033.290, subd. (d).)

Defendant

seeks \$2,660.00 ins sanctions, representing eight hours of attorney work at \$325 per hour. (Mullis Decl. ¶ 12.) Sanctions are not awarded, as Plaintiff

opposed the motion with substantial justification.

Superior Court of California

County of Los Angeles

Department 732

GUADALUPE RIOS.,

Plaintiff,

v.

US

MOTOR WORKS, LLC., et al.,

Defendants.

Case No.:

24STCV17721

Hearing Date: July 14, 2026

[TENTATIVE] RULING RE:

Defendant US Motor Works LLC's Motion to compel Further Responses
to Special Interrogatories from Plaintiff Guadalupe Rios

Defendant US Motor Works LLC's Motion to compel Further
Responses to Special Interrogatories from Plaintiff Guadalupe Rios is
GRANTED. Further responses shall be served within 20 days of this order. No
sanctions are awarded.

Defendant to provide notice.

Dated: July 14, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court